

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Max Bernstein	Team: Team # 6	CCRB Case #: 201303162	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 04/12/2013 12:40 PM	Location of Incident: § 87(2)(b) and § 87(2)(b)	Precinct: 60	18 Mo. SOL 10/12/2014	EO SOL 10/12/2014	
Date/Time CV Reported Sat, 04/13/2013 12:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/19/2013 10:51 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Daniel Guida	00373	941862	NARCBBS
2. DT3 Dudley Ewald	00327	943216	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A.DT3 Dudley Ewald	Abuse: Det. Dudley Ewald stopped § 87(2)(b)	
B.DT3 Daniel Guida	Abuse: Det. Daniel Guida stopped § 87(2)(b)	
C.DT3 Dudley Ewald	Abuse: Det. Dudley Ewald frisked § 87(2)(b)	
D.DT3 Daniel Guida	Abuse: Det. Daniel Guida frisked § 87(2)(b)	
E.DT3 Dudley Ewald	Abuse: Det. Dudley Ewald searched § 87(2)(b)	
F.DT3 Dudley Ewald	Force: Det. Dudley Ewald used physical force against § 87(2)(b)	
G.DT3 Daniel Guida	Force: Det. Daniel Guida used physical force against § 87(2)(b)	
H.DT3 Dudley Ewald	Force: Det. Dudley Ewald used physical force against § 87(2)(b)	
I.DT3 Daniel Guida	Force: Det. Daniel Guida used physical force against § 87(2)(b)	

On April 12, 2013, at approximately 12:40 p.m., § 87(2)(b) left his house located at § 87(2)(b) inside of the § 87(2)(b) in Brooklyn. § 87(2)(b) was wearing a black and grey hooded sweatshirt with a singular pocket across the front, which contained two loose cigarettes. § 87(2)(b) was also wearing blue jeans, sneakers, and had a blue Jansport backpack on, containing multiple DVDs and his cell phone.

§ 87(2)(b) walked to a store around the corner from his house and bought a plastic bottle of Tropicana orange juice. § 87(2)(b) put the juice in one of his back pockets and walked back to his housing complex. It was lightly drizzling at this time and § 87(2)(b) was walking with his hands in his sweatshirt pocket.

§ 87(2)(b) heard someone say, “Excuse me” from behind him. § 87(2)(b) did not think the individual was speaking to him, so he kept walking. Two or three seconds later, § 87(2)(b) heard the voice say, “Hey,” from behind him and then he felt a tap on the shoulder. § 87(2)(b) turned around and saw two officers dressed in plainclothes standing behind him (identified through investigation as Det. Dudley Ewald and Det. Daniel Guida of Narcotics Borough Brooklyn South). Det. Ewald showed § 87(2)(b) his shield and then asked § 87(2)(b) if he lived within the complex and where he was coming from and where he was going. As Det. Ewald asked these questions, he patted down § 87(2)(b) s pants pockets. Det. Ewald then asked § 87(2)(b) for his ID and looked at it. While Det. Ewald was looking at § 87(2)(b) s ID, Det. Guida patted down § 87(2)(b) s pants pockets.

Det. Ewald then patted down § 87(2)(b) s sweatshirt pocket and then put his hands inside of the pocket. While doing this, Det. Ewald told § 87(2)(b) that he looked suspicious and looked like he had a knife on him. Det. Ewald pulled out the two cigarettes from § 87(2)(b) s sweatshirt pocket, at which point § 87(2)(b) noticed that one of the cigarettes had broken. § 87(2)(b) asked if he could be reimbursed for the cigarette, but Det. Ewald said that § 87(2)(b) would not be reimbursed for “looseys” (meaning illegally sold single cigarettes). § 87(2)(b) told Det. Ewald that the cigarettes were not looseys, so Det. Ewald asked where the cigarette box was. § 87(2)(b) explained that he does not carry the box because it is bulky. § 87(2)(b) had the cigarettes in his pocket from when he left his house.

Det. Ewald searched all of § 87(2)(b) s pockets and pulled everything out, before putting the items back in and moving onto the next pocket. Det. Ewald did not search § 87(2)(b) s backpack. Following the search, Det. Ewald said, “OK. You can go now.”

Det. Ewald and Det. Guida turned around walked towards their vehicle, but § 87(2)(b) followed them and repeatedly asked Det. Ewald to repay him for the broken cigarette. Det. Ewald refused and told § 87(2)(b) that the cigarette he had was a loosey and was illegal.

Det. Guida got into the driver’s seat of a light gray Sonata and Det. Ewald opened the passenger’s side door, while speaking with § 87(2)(b). § 87(2)(b) asked for an apology or reimbursement or anything as reparation for the broken cigarette, but Det. Ewald told § 87(2)(b) to go home. As a result, § 87(2)(b) said that he no longer wanted the broken cigarette, so he dropped it onto the seat that Det. Ewald was about to sit in. Det. Ewald then exited the vehicle and told § 87(2)(b) that he made a big mistake.

§ 87(2)(b) lifted his hands to about shoulder level to show Det. Ewald where his hands were, assuming that he was about to be placed in handcuffs. Det. Ewald grabbed § 87(2)(b) s left

wrist, but instead of twisting up in a motion consistent with handcuffing someone, Det. Ewald used his other hand to grab § 87(2)(b)'s bicep. Det. Ewald then pulled § 87(2)(b) backwards and then pushed him forwards repeatedly, causing § 87(2)(b)'s body to jerk back and forth. While being jerked around, § 87(2)(b) twisted his ankle, however, in the moment it did not hurt him. § 87(2)(b) did not fall to the ground, but he was stumbling forwards and backwards with each movement.

While § 87(2)(b) was being pulled back and forth, Det. Guida exited the police vehicle and came around to § 87(2)(b)'s right side. § 87(2)(b) then felt two or three punches to his left shoulder and chest area, which he assumed were thrown by Det. Ewald because of the side they were coming from. The punches did not land cleanly and did not cause any injuries to § 87(2)(b).

§ 87(2)(b) then felt both Det. Ewald and Det. Guida lifting him up by his arms, Det. Ewald on the left arm and Det. Guida on the right. Det. Ewald and Det. Guida lifted § 87(2)(b) off of the ground then slammed him back down, causing § 87(2)(b) to land on his right knee. At this point, § 87(2)(b) got onto both knees and just faced downwards towards the ground. § 87(2)(b) was then handcuffed, although he does not know which officer handcuffed him. § 87(2)(b) then felt a punch to the right side of his face, near his cheek, quickly followed by nine or slightly fewer punches to his chest, shoulders and arms, from the side Det. Guida had been on. § 87(2)(b) stated that when he took his second knee, he had stopped moving or saying anything. However, after he felt the first punch to his face, he squirmed, moving his head back and forth.

§ 87(2)(b) then heard a friend, identified as § 87(2)(b) who had been in the parking lot but had since walked over to the scene, asking what was going on. At that point, the officers stopped punching § 87(2)(b). Other than § 87(2)(b) no crowd gathered during the incident. After the force stopped, § 87(2)(b) was placed into Det. Ewald and Det. Guida's vehicle, before being transported from the scene and placed in a different van.

After a few hours, § 87(2)(b) was released from the van outside of the 60th Precinct stationhouse. § 87(2)(b) was given a summons and an envelope with his property inside, and left the scene. When § 87(2)(b) took his phone out of his backpack, he noticed that the screen was cracked. § 87(2)(b) was not sure when the phone cracked. Also, when § 87(2)(b) got out of the van, he felt pain in his right ankle. § 87(2)(b) returned home, but after the pain did not cease, § 87(2)(b) went to § 87(2)(b) at about midnight on § 87(2)(b) where he was diagnosed with a sprained ankle. § 87(2)(b) had to miss two days of work as a result of the injury.

Witness: § 87(2)(b)

On October 2, 2013, § 87(2)(b) was contacted by telephone (encl. 8). § 87(2)(b) is § 87(2)(b)'s cousin and he stated that on April 12, 2013, he parked his car on § 87(2)(b) and § 87(2)(b) in Brooklyn. When § 87(2)(b) exited his vehicle, he noticed two police officers (Det. Ewald and Det. Guida) pulling § 87(2)(b)'s arms behind his back. § 87(2)(b) repeatedly told the officers that he had not done anything wrong, but the officers did not respond.

Det. Ewald and Det. Guida lifted § 87(2)(b) up off of the ground completely and slammed him down, face and chest first. § 87(2)(b) initially stated that once § 87(2)(b) was on the ground, Det. Ewald kicked him. However, § 87(2)(b) later stated that Det. Ewald just put his knee into

§ 87(2)(b) s back prior to handcuffing him. § 87(2)(b) did not see either officer punch § 87(2)(b) while on the ground.

§ 87(2)(b) was then lifted up and thrown into the police vehicle, despite the fact that he was compliant while walking to the car. When § 87(2)(b) was eventually released, his leg was swollen and he went to the hospital because of it.

NYPD Statements:

Subject Officer: DET. DUDLEY EWALD

- *Det. Ewald was § 87(2)(b) old at the time of the incident. He is a white male, who stands 5'7" tall, weighs 200 pounds, and has brown hair and brown eyes.*
- *On April 12, 2013, Det. Ewald worked from 9:27 a.m. until 9:00 p.m. He was assigned to Team 1 with Det. Daniel Guida, dressed in plainclothes, and assigned to an unmarked grey sedan, § 87(2)(e), § 87(2)(b).*

Memo Book (encl. 12A-C):

At approximately 12:43 p.m., Det. Ewald noted a stop at § 87(2)(b) and § 87(2)(b). At 12:46 p.m., Det. Ewald had one individual under arrest.

Summons:

§ 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement:

On January 8, 2014, Det. Ewald was interviewed at the CCRB (encl. 13A-C). His statement is summarized below.

On April 12, 2013, at approximately 12:43 a.m., Det. Ewald was seated in the passenger's seat of his parked police vehicle about 20 feet north of the northwest corner of § 87(2)(b) and § 87(2)(b) in Brooklyn, with Det. Guida. There had been a drug related shooting on § 87(2)(b) and § 87(2)(b) within the few days prior to April 12, 2013, and Det. Ewald and Det. Guida were making observations in the area.

Det. Ewald observed § 87(2)(b) exit from one of three or four large apartment buildings in a complex that spans § 87(2)(b) and § 87(2)(b). § 87(2)(b) was wearing a sweatshirt, but Det. Ewald did not recall what else he was wearing. § 87(2)(b) walked in front of Det. Ewald's vehicle and crossed the street. § 87(2)(b) approached a man standing on the northeast corner of § 87(2)(b) and § 87(2)(b) and exchanged U.S. currency for a small object. The object was small, white, and looked like something rolled up. Det. Ewald believed that the object was a marijuana cigarette based on his narcotics training and experience, because the exchange took place in a drug prone location, and because § 87(2)(b) made a purchase on the street with U.S. currency. After § 87(2)(b) received the object, he placed it into his front sweatshirt pocket.

§ 87(2)(b) crossed back to the northwest side of the street, at which time Det. Ewald got out of the car and approached § 87(2)(b). Det. Ewald's intention in approaching § 87(2)(b) was to determine if he just bought marijuana. Det. Ewald pulled out his shield and said, "Hey, can I talk to you for a second." § 87(2)(b) said yes but then placed his hands into his hoodie pocket. Det. Ewald told § 87(2)(b) to keep his hands visible and simultaneously grabbed § 87(2)(b) s

hands from outside of the sweatshirt pocket. Det. Ewald grabbed § 87(2)(b) because he believed that a narcotics transaction had just taken place.

When Det. Ewald grabbed § 87(2)(b)'s sweatshirt pocket, he did not feel any hard objects. Before Det. Ewald made any additional statements, § 87(2)(b) said that he had just bought a cigarette and pulled his hands out of his pockets, displaying a single cigarette, which he referred to as a "loosey," which was broken in half. Det. Ewald figured that he broke the cigarette when he grabbed § 87(2)(b)'s hands through the pocket. After § 87(2)(b) produced the cigarette, Det. Ewald apologized to § 87(2)(b) for the inconvenience. Other than grabbing § 87(2)(b)'s sweatshirt pocket, which Det. Ewald referred to as a frisk during his CCRB interview, Det. Ewald did not frisk or search § 87(2)(b). Det. Guida also did not frisk or search § 87(2)(b). At no point did Det. Ewald or Det. Guida have any conversation with § 87(2)(b) regarding a knife.

After apologizing to § 87(2)(b), Det. Ewald walked back to the police vehicle. As he was walking, § 87(2)(b) followed and yelled at Det. Ewald, "Fuck you. Give me money to buy another loosey. Give me money." Det. Ewald ignored § 87(2)(b)'s statements. As § 87(2)(b) yelled and cursed, a crowd of about four to five people came out onto the sidewalk and was standing about 20 feet away from Det. Ewald.

§ 87(2)(b) followed Det. Ewald to the police vehicle and as Det. Ewald was getting inside of the car, § 87(2)(b) threw his broken cigarette at Det. Ewald's face. § 87(2)(b) was then under arrest for § 87(2)(b). Det. Ewald and Det. Guida got out of the police vehicle and Det. Ewald told § 87(2)(b) to put his hands behind his back. § 87(2)(b) verbally refused, so Det. Ewald grabbed § 87(2)(b)'s arms. Det. Ewald and § 87(2)(b) were face-to-face and Det. Ewald tried to turn § 87(2)(b) around using his arms, but § 87(2)(b) ripped his arms away from Det. Ewald and repeatedly stated, "No." Det. Guida then grabbed § 87(2)(b)'s upper body and Det. Ewald put his calf into the back of one of § 87(2)(b)'s knee caps, and controlled § 87(2)(b) down to the ground. Det. Ewald did not recall if § 87(2)(b) fell on his face or back, but Det. Guida was holding onto § 87(2)(b)'s upper body as he fell. Neither Det. Ewald nor Det. Guida punched § 87(2)(b) while he was standing.

Once on the ground, § 87(2)(b) stopped resisting and he was placed in handcuffs. The whole physical interaction took approximately 45 seconds. At no point did either officer punch or kick § 87(2)(b) while he was on the ground.

When the detectives were struggling with § 87(2)(b) more people started to gather and objects were thrown from windows within the apartment complex at Det. Ewald and Det. Guida. None of the objects hit Det. Ewald or Det. Guida and Det. Ewald did not recall what specific objects were thrown.

Because the situation was escalating, Det. Ewald and Det. Guida lifted § 87(2)(b) up and put him in their police vehicle and left the scene. Det. Ewald noted that he would usually wait for the prisoner van to arrive at the scene, because his vehicle was not well suited for transporting prisoners, but because the scene was volatile, they decided to leave the scene.

Det. Ewald and Det. Guida met up with their team's prisoner van and put § 87(2)(b) inside. During the transport, § 87(2)(b) was calm and did not complain of any injuries. After § 87(2)(b) was placed in the prisoner van, Det. Ewald went back to the 60th Precinct to check if § 87(2)(b)

§ 87(2)(b) had any open warrants. Det. Ewald did not have a computer in his car, so in order to check for warrants, he had to go back to a stationhouse. After § 87(2)(b)'s record came up clean, Det. Ewald issued him a criminal court summons for § 87(2)(b) and released him.

Subject Officer: DET. DANIEL GUIDA

- Det. Guida was § 87(2)(b) old at the time of the incident. He is a Hispanic male, who stands 6'1" tall, weighs 270 pounds, and has brown hair and blue eyes.
- On April 12, 2013 Det. Guida worked from 9:27 a.m., to 6:00 p.m. He was assigned to Team 1 with Det. Dudley Ewald, was dressed in plainclothes, and was assigned to an unmarked grey dodge van number § 87(2)(e)

Memo Book (encl. 9A-C):

At 12:40 p.m., Det. Guida noted that he and Det. Ewald were making observations at § 87(2)(b) and § 87(2)(b) in Brooklyn. At 12:46 p.m., Det. Guida noted § 87(2)(b) was under arrest, but was released with a summons at the precinct.

CCRB Statement:

On November 6, 2013, Det. Guida was interviewed at the CCRB (encl. 10A-C). § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Det. Guida corroborated Det. Ewald's testimony that § 87(2)(b) exited his building, crossed the north side of the street, and handed U.S. currency to a male in exchange for a small white object. The officers were about 100 feet away from § 87(2)(b) when he made the exchange. Det. Guida and Det. Ewald then exited their vehicle, identified themselves as police officers, and told § 87(2)(b) to stop. § 87(2)(b) stopped, but he yelled at the detectives, stating that they were harassing him. Det. Guida and Det. Ewald informed § 87(2)(b) that the transaction looked suspicious and asked him what he bought. § 87(2)(b) said that he bought a loose cigarette from the other male. The detectives asked § 87(2)(b) to produce the cigarette and he complied, although Det. Guida did not recall where he produced the cigarette from. The detectives concluded that the object was not contraband, so they informed § 87(2)(b) that he was free to go. At no point was there a discussion regarding § 87(2)(b) having a knife.

Det. Ewald frisked § 87(2)(b) during the initial stop, because § 87(2)(b) was irate and yelling at the officers. The frisk took place about one minute into the stop. Det. Guida did not recall what § 87(2)(b) was wearing at the time. Det. Guida did not recall seeing any bulges in § 87(2)(b) pockets. Det. Guida did not recall if § 87(2)(b) was frisked before or after producing the cigarette. Det. Guida did not frisk § 87(2)(b) at any point. § 87(2)(b) was not searched by either detective.

Det. Guida and Det. Ewald walked back to their vehicle, which was parked approximately twenty feet away from the location of the stop. As the detectives approached their vehicle, they heard § 87(2)(b) cursing and yelling behind them. § 87(2)(b) followed the detectives to their vehicle. Det. Guida entered the vehicle on the driver's side while Det. Ewald entered on the passenger side. Det. Guida observed § 87(2)(b) reach toward Det. Ewald's face. Det. Guida initially thought that § 87(2)(b) slapped Det. Ewald in the face, but was later told that § 87(2)(b) had thrown the cigarette into Det. Ewald's face.

Det. Ewald recoiled and then exited the vehicle. Det. Ewald ordered § 87(2)(b) to put his hands behind his back. § 87(2)(b) refused and Det. Guida ran to the passenger side of the vehicle. When Det. Guida arrived on the passenger side of the vehicle, the detectives again ordered § 87(2)(b) to put his hands behind his back. § 87(2)(b) did not comply. § 87(2)(b) moved his arms and hands to avoid being cuffed. Det. Guida then pushed on § 87(2)(b)'s shoulder to force him to the ground. Det. Ewald assisted, but Det. Guida did not specify how.

Once on the ground, § 87(2)(b) refused to give up his hands and kept them tucked close to his body. It took approximately ten seconds for the detectives to handcuff § 87(2)(b). Each detective grabbed one of § 87(2)(b)'s arms and brought them together to handcuff him. § 87(2)(b) did not physically resist after being handcuffed, but did continue to yell. The detectives did not use any force after handcuffing § 87(2)(b). Neither detective punched or kicked § 87(2)(b) at any point during the struggle.

§ 87(2)(b) was searched only after being handcuffed. Det. Guida did not recall if he or Det. Ewald performed the search.

There were a couple of people who had gathered when § 87(2)(b) was cursing at the officers, but once the officers apprehended § 87(2)(b) the crowd grew to about 20 people. No one tried to physically interfere or got too close, however, the crowd threw garbage and eggs from their windows in a nearby building. None of the objects made contact with either detective or their vehicle. The detectives placed § 87(2)(b) into their vehicle and met a prisoner van a few blocks away as the conditions at the scene were unsafe.

Medical Records

§ 87(2)(b) was treated for pain to his left ankle, which was unable to bear weight, at § 87(2)(b) on § 87(2)(b). An x-ray of § 87(2)(b)'s leg showed no dislocations or fractures. The diagnosis was an ankle sprain and strain and he was treated with Naproxen, an ace bandage, and crutches.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of January 15, 2014, with regard to the incident (encl. 19F).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).

Subject Officers CCRB History

- Det. Ewald and Det. Guida have been members of the service for seven years and there are no substantiated CCRB allegations against either of them (encl. 1,2).

Conclusion

Identification of Subject Officers

It is undisputed that Det. Ewald and Det. Guida stopped § 87(2)(b) on the corner of § 87(2)(b) and § 87(2)(b). It is also undisputed that Det. Ewald took the lead in the interaction, and § 87(2)(b) stated that the lead officer frisked and searched him, while the other officer only frisked him. Additionally, § 87(2)(b) alleged that the lead officer punched him in the head, and that both officers slammed him down to the ground. Finally, § 87(2)(b) alleged that on the ground, he felt about nine punches from the right side, where Det. Guida had been standing § 87(2)(g).

Allegations Not Pleaded

§ 87(2)(b) stated that his cell phone's screen cracked as a result of this incident, however, § 87(2)(b) did not know at which point or how his phone screen cracked. § 87(2)(b) noted that his phone was inside of his bag throughout the incident, and he only took it out and noticed it was broken after he was released from police custody. However, neither officer saw § 87(2)(b)'s phone during the incident and did not know that his phone was inside of his backpack. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority—Det. Dudley Ewald stopped § 87(2)(b)

Allegation B: Abuse of Authority—Det. Daniel Guida stopped § 87(2)(b)

Allegation C: Abuse of Authority—Det. Dudley Ewald frisked § 87(2)(b)

Allegation D: Abuse of Authority—Det. Daniel Guida frisked § 87(2)(b)

Allegation E: Abuse of Authority—Det. Dudley Ewald search § 87(2)(b)

Allegation F: Force—Det. Dudley Ewald used physical force against § 87(2)(b)

Allegation G: Force—Det. Daniel Guida used physical force against § 87(2)(b)

§ 87(2)(b) stated that he left his apartment with two loose cigarettes in his sweatshirt pocket, because he does not like carrying a bulky box. § 87(2)(b) walked to a store, purchased a juice, then walked out, at which point he was allegedly stopped by Det. Ewald and Det. Guida. Det. Ewald then subsequently frisked him and took § 87(2)(b)'s ID, at which time Det. Guida allegedly frisked § 87(2)(b). Det. Ewald then allegedly searched all of § 87(2)(b)'s pockets, including the sweatshirt pocket that contained the two cigarettes, at which time one of the cigarettes broke. § 87(2)(b) was told he was free to leave, but he undisputedly asked for Det. Ewald to pay him back for the broken cigarette. When Det. Ewald refused, § 87(2)(b) undisputedly threw the cigarette into Det. Ewald's vehicle. This prompted Det. Ewald to allegedly grab § 87(2)(b) and shake him back and forth. Both detectives then allegedly lifted § 87(2)(b) up and slammed him onto the ground.

§ 87(2)(b) arrived on the scene when Det. Ewald and Det. Guida were engaged in a physical struggle with § 87(2)(b). § 87(2)(b) saw the officers slam § 87(2)(b) to the ground and then Det. Ewald put his knee into § 87(2)(b)'s back.

Det. Ewald and Det. Guida were consistent that they observed § 87(2)(b) make a hand-to-hand transaction, exchanging U.S. currency for a small white object. Both detectives approached § 87(2)(b) to determine what the object was. Det. Ewald stated that upon approach, § 87(2)(b) put his hands into his pocket where he had placed the small object. Det. Ewald said that he grabbed § 87(2)(b)'s hands and the object from outside of the sweatshirt pocket. This prompted § 87(2)(b) to pull his hands out of his pocket and show that he had just purchased a loose cigarette. Det. Ewald denied conducting an additional frisk or search of § 87(2)(b).

Det. Guida testified that § 87(2)(b) was irate the moment the stop was initiated. § 87(2)(b) was told that he looked suspicious and was asked to produce what he had just purchased, at which time he pulled out the loose cigarette. Det. Guida added that Det. Ewald frisked § 87(2)(b) but Det. Guida did not recall if the frisk took place before or after the cigarette was produced. Det. Guida denied frisking § 87(2)(b) and said that § 87(2)(b) was never searched.

Det. Ewald and Det. Guida said that after § 87(2)(b) threw a cigarette at Det. Ewald, § 87(2)(b) was told to put his hands behind his back. § 87(2)(b) refused and repeatedly pulled his hands away from the officers. As such, both officers pushed § 87(2)(b) down to the ground, but did so in a controlled way so that § 87(2)(b) did not slam against the ground.

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§ 87(2)(g)

Allegation H: Force—Det. Dudley Ewald used physical force against § 87(2)(b)

Allegation I: Force—Det. Daniel Guida used physical force against § 87(2)(b)

§ 87(2)(b) alleged that he felt a punch to the left side of his face, the side where Det. Ewald was standing. § 87(2)(b) also alleged that once on the ground, he felt about nine punches from the right side, where Det. Guida had been standing. § 87(2)(b)'s medical records listed that he had a sprained ankle, but revealed no additional injuries and § 87(2)(b) did not allege that he was punched when speaking with medical personnel.

§ 87(2)(b) saw officers slam § 87(2)(b) to the ground, but did not see Det. Ewald or Det. Guida punch § 87(2)(b). Det. Ewald and Det. Guida denied punching § 87(2)(b) at any point during the incident.

§ 87(2)(g)
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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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Reviewer: _____
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